

40 & 41 Vict.
c. 2.

(2) The date of payment of any Treasury Bills issued under this section shall be a date not later than the thirty-first day of March nineteen hundred and seven, and section six of the Treasury Bills Act, 1877 (which relates to the renewal of bills), shall not apply with respect to those bills.

(3) Any money borrowed otherwise than on Treasury Bills shall be repaid, with interest not exceeding five pounds per cent. per annum, out of the growing produce of the Consolidated Fund, at any period not later than the next succeeding quarter to that in which the money was borrowed.

(4) Any money borrowed under this section shall be placed to the credit of the account of the Exchequer, and shall form part of the said Consolidated Fund, and be available in any manner in which such Fund is available.

Short title.

4. This Act may be cited as the Consolidated Fund (No. 1) Act, 1906.

CHAPTER 2.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army.

[30th March 1906.]

WHEREAS the raising or keeping of a standing army within the United Kingdom of Great Britain and Ireland in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of two hundred and four thousand one hundred, including those to be employed at the depôts in the United Kingdom of Great Britain and Ireland for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions :

And whereas it is also judged necessary for the safety of the United Kingdom, and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law, in their duty, that an exact discipline be observed, and that persons belonging to the said forces who mutiny or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow:

And whereas the Army Act will expire in the year one thousand nine hundred and six on the following days: 44 & 45 Vict.
c. 58.

- (a) In the United Kingdom, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b) Elsewhere in Europe, inclusive of Malta, also in the West Indies and America, on the thirty-first day of July; and
- (c) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of December:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. This Act may be cited as the Army (Annual) Act, 1906. Short title.

2.—(1) The Army Act shall be and remain in force during the periods herein-after mentioned, and no longer, unless otherwise provided by Parliament (that is to say):— Army Act to
be in force for
specified times.

- (a) Within the United Kingdom, the Channel Islands, and the Isle of Man, from the thirtieth day of April one thousand nine hundred and six to the thirtieth day of April one thousand nine hundred and seven, both inclusive; and
- (b) Elsewhere in Europe, inclusive of Malta, also in the West Indies and America, from the thirty-first day of July one thousand nine hundred and six to the thirty-first day of July one thousand nine hundred and seven, both inclusive; and
- (c) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of December one thousand nine hundred and six to the thirty-first day of December one thousand nine hundred and seven, both inclusive.

(2) The Army Act, while in force, shall apply to persons subject to military law, whether within or without His Majesty's dominions.

(3) A person subject to military law shall not be exempted from the provisions of the Army Act by reason only that the

number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the number herein-before mentioned.

Prices in respect of billeting.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act the prices specified in the Schedule to this Act.

Amendments of Army Act.

Power to award detention instead of imprisonment as punishment for military offences.

4. For the purpose of preventing soldiers convicted of offences against discipline under the Army Act, and not discharged with ignominy, from being subjected to the stigma attaching to imprisonment, the following amendments shall be made in the Army Act:—

(1) In section forty-four—

(i) After paragraph *k* there shall be added as an additional paragraph—

“*k k* Detention for a term not exceeding two years”;

(ii) After proviso (1) there shall be added as an additional proviso—

“(1A) For the purposes of commutation and revision of punishment, detention shall not be deemed to be a less punishment than imprisonment if the term of detention is longer than the term of imprisonment.”

(2) The word “detention” shall be substituted for the word “imprisonment” in proviso (10) to section forty-four, and for the words “imprisonment with or without hard labour” and “imprisonment,” wherever those words occur in section forty-six.

(3) In subsection (5) of section forty-seven for the words “death or penal servitude or of imprisonment” there shall be substituted the words “death, penal servitude, or imprisonment, or of detention.”

(4) In subsection (3) of section fifty, section fifty-one, section fifty-two, subsections (3), (4), and (8) of section fifty-three, subsections (3) and (4) of section fifty-four, and section fifty-six, the word “accused” shall be substituted for the word “prisoner” wherever that word occurs; and in subsection (9) of section fifty-three and subsection (1) of section fifty-four, the words “person under sentence” shall be substituted for the word “prisoner.”

(5) For paragraph (1) of section one hundred and thirty-eight the following paragraph shall be substituted:—

“(1) All ordinary pay for every day of absence either on desertion or without leave, or as a prisoner of war, and for every day of imprisonment awarded by a civil court or court-martial, or, if he is on

board one of His Majesty's ships, by the commanding officer of that ship, for every day of detention awarded by a court-martial or by his commanding officer, and for every day whilst he is in custody on a charge for an offence of which he is afterwards convicted by a civil court or court-martial, or on a charge of absence without leave for which he is afterwards awarded detention by his commanding officer."

- (6) After section one hundred and thirty-five, the following section shall be added as a new section:—

"135 A.—(1) A soldier sentenced to detention shall undergo the term of his detention either in military custody or in a detention barrack, or partly in one way and partly in the other.

"(2) A soldier sentenced to imprisonment, or any other person liable to be imprisoned in a military prison, may be confined in a detention barrack, but a soldier sentenced to detention shall not be confined in a prison.

"(3) Subject to the foregoing provisions of this section, the provisions of this Act (other than proviso (4) to section forty-four) relating to imprisonment, military prisoners, and military prisons, shall apply to detention, soldiers undergoing detention, and detention barracks:

"Provided that a detention barrack shall not be deemed to be a public prison for the purposes of subsection (3) of section sixty-three of this Act, so far as that subsection relates to the manner in which a military prisoner is to be dealt with."

- 5.—(1) For paragraph (a) of subsection (1) of section thirteen of the Army Act (which relates to fraudulent enlistment) the following paragraph shall be substituted:—

"(a) When belonging to either the regular forces, or the militia when embodied, or the yeomanry when called out for actual military service, without having obtained a regular discharge therefrom, or otherwise fulfilled the conditions enabling him to enlist or enrol, enlists or enrolls himself in His Majesty's regular forces or in any force raised in India or a colony."

Amendment of
Army Act as to
fraudulent en-
listment in
colonial force.

- (2) In subsection (1) of section one hundred and eighty-one of the Army Act (which modifies that Act with respect to the auxiliary forces) for the words "enlists or attempts to enlist in the regular forces" there shall be substituted the words "enlists or enrolls himself, or attempts to enlist or enrol himself, in the regular forces or in a force raised in India or a colony."

As to mode of
complaint by
soldiers.

6. In section forty-three of the Army Act (which relates to the mode of complaint by soldiers), for the words "to the general or other officer commanding the district or station where the soldier is serving," there shall be substituted the words "to the prescribed general officer."

As to punish-
ments of non-
commissioned
officers.

7.—(1) For paragraph *m* of section forty-four of the Army Act (which relates to punishments of non-commissioned officers) the following paragraph shall be substituted:—

"*m.* In the case of a non-commissioned officer, forfeiture, in the prescribed manner, of seniority of rank, or reduction to a lower grade, or to the ranks."

(2) In paragraph (3) of section one hundred and eighty-three of the Army Act (which relates to non-commissioned officers), for the words "may be reduced by sentence of a court-martial," there should be substituted the words "may, by the sentence of a court-martial, be ordered to forfeit seniority of rank or be reduced."

As to com-
petent military
authority for
the purposes of
s. 73.

8. In subsection (3) of section seventy-three of the Army Act (which relates to the competent military authority in case of confession of desertion or fraudulent enlistment) for the words "or any general or other officer commanding a military district" there shall be substituted the words "or any prescribed general officer."

As to military
prisons.

9.—(1) Rules made under subsection (2) of section one hundred and thirty-three of the Army Act (which relates to military prisons) shall not authorise the infliction of corporal punishment for any offence, and accordingly in that subsection the words "not exceeding twenty-five lashes in the case of corporal punishment," and the words "in addition to the offences for which such punishment can be inflicted in pursuance of the Prison Act, 1865, and the Prison Act, 1877" shall be repealed.

(2) In the same subsection, after the words "military prisoners therein" there shall be inserted the words "and for enabling such prisoners to earn, by special industry and good conduct, a remission of a portion of their sentence."

(3) In the same subsection, for the words "regulations in the Prison Act, 1865, and in the Prison Act, 1877, as to the duties of gaolers, medical officers, and coroners," there shall be substituted the words "regulations made under the Prison Act, 1898, as to the duties of gaolers and medical officers and all regulations contained in the Coroners Act, 1887, as to the duties of coroners with respect to inquests in prisons."

41 & 62 Vict.
c. 41.

53 & 51 Vict.
c. 71.

As to the appli-
cation of mili-
tary law to re-
servists.

10. At the end of paragraph (5) of section one hundred and seventy-six of the Army Act (which relates to the application of military law to the reserve forces) there shall be added:—

"and

"(d) when employed in military service under the orders of an officer of the regular forces."

SCHEDULE.

Accommodation to be provided.	Maximum Price.
Lodging and attendance for soldier where hot meal furnished.	Fourpence per night.
Hot meal as specified in Part I. of the Second Schedule to the Army Act.	One shilling and three pence halfpenny each.
Breakfast as so specified - - - - -	One penny halfpenny each.
Where no hot meal furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Fourpence per day.
Ten pounds of oats, twelve pounds of hay, and eight pounds of straw per day for each horse.	One shilling and ninepence per day.
Lodging and attendance for officer - - -	Two shillings per night.

Note.—An officer shall pay for his food.

CHAPTER 3.

An Act to make provision with respect to loans and sales made for the purpose of the supply of Seed Potatoes to occupiers and cultivators of land in Ireland.
[29th May 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Where at any time between the first of December nineteen hundred and four and the first of September nineteen hundred and five the Board of Works have, with the consent of the Treasury and the approval of the Local Government Board, made out of moneys at their disposal for the purpose of local loans any loan to the guardians of any union for the purpose of providing seed potatoes, the loan shall be deemed to have been legally made and shall be repayable by the guardians to the Board of Works by two equal instalments, the first of which shall be paid on the first day of February nineteen hundred and seven and the second on the first day of February nineteen hundred and eight, with interest at the rate of three and a half

Validation and repayment of loans for provision of seed potatoes.